Our ref: FITT8023
Your ref: ES-22-0090

30 June 2023

By Email Only: Andrew.wong@dewr.gov.au

Attention: Mr Andrew Wong
Provider Lead
C/- Department of Employment and Workplace Relations
GPO Box 9828
CANBERRA ACT 2601

Dear Mr Wong

Workforce Australia Services Deed of Standing Offer 2022-2028 - Request for clarification regarding capacity and capability to provide Workforce Australia Services in the Perth-South Employment Region

We confirm we act for Mr Simon Reid, Director of Forward Focused Group Pty Ltd (ABN 98 643 878 639) ('Client') in this matter.

We refer to the matter above and your email dated 21 June 2023 requesting information in respect of the capacity of Forward Focused Group (FFG) to deliver the services of the Workforce Australia Services Deed (Deed). We would also like to thank the Department of Employment and Workplace Relations (DEWR) for the extension of time to respond.

The following information is provided by our client in response to DEWR's request:

a. details of any premises that Your Client currently owns or leases that are suitable for the delivery of Workforce Australia Services in the Perth-South Employment Region

FFG are currently operating from Shop 2, 43 William Street Armadale. A copy of the lease for these premises can be found at **Attachment 1**.

43 William Street has two separate office spaces – shop 1 and shop 2, each separate from each other with separate entrances.

b. the number of staff that FFG currently employs, and details of their qualifications and experience that are relevant to the delivery of such services

The current staff within FFG are:

- Simon Reid – Director
- Tori Vince – General Manager Employment Services
- Huma Rasuly – Head of Finance

FFG have undergone a significant organisational restructure and will be engaging further staff to help execute the Deed as required. **Attachment 2** is a letter from our client giving further information regarding the skills and experience of the staff listed above.

c. FFG's organisation/operational structure, that is, a diagram that sets out the organisation's internal operating structure;

See **Attachment 3** regarding our client's organisational structure.

d. details of how FFG's governance systems and procedures ensure currency and compliance with contractual obligations, relevant legislation and internal controls e.g. **risk, fraud**

Attachment 4 is FFG's current Fraud Policy. There is also a suite of other policies and procedures that FFG currently have in place that ensures a strong and robust governance system and in turn, ensures currency and compliance with the Deed.

Attachment 5 is a letter from our client that lists the current governance system documents for FFG. Given the volume of these document, our client has suggested scheduling a secure data exchange or meeting for the full copies to be provided.

As mentioned above, FFG has recently undergone a major restructure, both in terms of staff and the delivery of services. Even so, FFG strongly asserts they maintain the capacity to deliver the services of the Deed in the Perth-South Employment Region.

Should DEWR require any further information to demonstrate our client's capacity in relation to this Deed, this will willingly be provided.
Please do not hesitate to contact us if you have any queries.

Kind regards

Tom & Co Legal

Tom & Co Legal

ATTACHMENT 1

Commercial Lease Agreement Template

Commercial Lease Agreement

This Lease agreement is made on this 20 day of May (Month), 2023(Y ear) by and between

Sahar and Simon PTY LTD ACN 656533694 responsible for the Sahar Family Trust hereinafter "Landlord")

AND

Forward Focused Group Pty Ltd ABN 98643878639 (hereinafter "Tenant").

In consideration for the shared promises and agreements contained herein, and for other good and valuable consideration, the parties hereby agree as follows:

1. The Landlord leases to the Tenant, and the Tenant rents from the Landlord the following stated grounds: Shop 2, 43 William Street, Armadale, 6112, WA

2. The tenure of the Lease shall be for 5 Years beginning 20 May 2023 and ending 20 May 2028.

3. The Tenant shall pay to Landlord as rent $20,000 per year in equal monthly installments of $1,666 payable in advance.

4. This Lease is subject to all present or prospect mortgages affecting the property.

5. Tenant shall use and inhabit the building only as a Commercial Office (Tenant Rental Status) subject at all times to the approval of the Landlord.

6. The Tenant shall not make any amendments, additions or improvements to the building without the prior written permission of the Landlord.

7. The leaseholder shall not let or commit waste to the property.

8. The leaseholder shall meet the terms, policies, order codes and laws of all governmental establishments having authority over the property.

9. The Tenant shall not allow or engage in any activity that will affect an increase in the rate of insurance for the Building in which the property is not contained nor shall the leaseholder allow or commit any annoyance thereon.

10. The lessee shall not sublet or allocate the neither property nor consent to any other person or business to use or occupy the property without the earlier written approval of the Landlord, which permission may not be unduly withdrawn.

11. At the end of the period of this Lease, the lessee shall give in and deliver up the property in the same condition (subject to any additions, alterations or improvements, if any) as presently exists, realistic wear and tear expelled.

12. Upon evasion in any term or condition of this Lease, the owner shall have the right to embark on any or all other remedies allowable by Law.

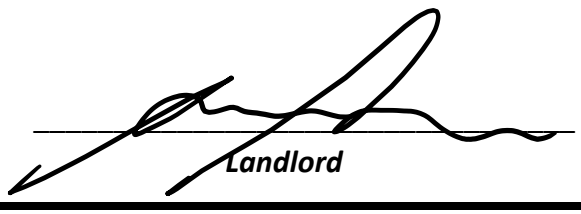
16. This Lease shall be binding upon, and inure to the benefit of, the parties, their beneficiaries, successors, and assigns.

Signed on 20/05/2023



_____

Tenant



_____

Landlord

ATTACHMENT 2

FORWARD FOCUSED
YOU ARE OUR FOCUS

Dear Workforce Australia,

I hope this correspondence finds you well. As the Director of Forward Focused Group Pty Ltd. (FFG), I am writing to provide you with the requested information regarding our current staff members.

Firstly, I am pleased to inform you that I, Simon Reid, serve as the sole Director of FFG. With a comprehensive background in assisting individuals in securing employment and providing expert guidance, I have acquired invaluable experience in this field during my time and past few years at FFG. Additionally, my educational achievements include a diploma in financial planning, further enhancing my ability to contribute effectively to our organization's endeavours.

Recently, we have undergone a significant transition within our management team. Tori, previously a Director, has taken on the new role of General Manager Employment Services. Tori's credentials include a Certificate III in Business, which has equipped them with essential skills to support our operations. Furthermore, Tori's status as a valued member of the Indigenous community enriches our organization by bringing forth a wealth of knowledge crucial for engaging youth job seekers effectively.

Within our finance department, we have the esteemed presence of Huma Rasuly as the Head of Finance. Huma boasts an extensive tenure of over three years at Australian P&N Bank, honing her expertise in the financial sector. Her experience and knowledge have proven to be invaluable to FFG, ensuring sound financial management and strategic decision-making.

I would also like to emphasize that FFG stands fully prepared to employ additional staff members promptly upon receiving a work order from Workforce Australia. Our existing agreement with Talent Quarter solidifies our exclusive access to staff selection and onboarding services, further streamlining the execution of any work order we undertake on behalf of Workforce Australia.

In conclusion, the combined expertise, qualifications, and experience of our team members make FFG an ideal partner for collaborating with Workforce Australia. We are committed to delivering exceptional results while maintaining the highest standards of professionalism and integrity.

Thank you for your attention, and we look forward to the potential collaboration with Workforce Australia.

Yours sincerely,



Simon R

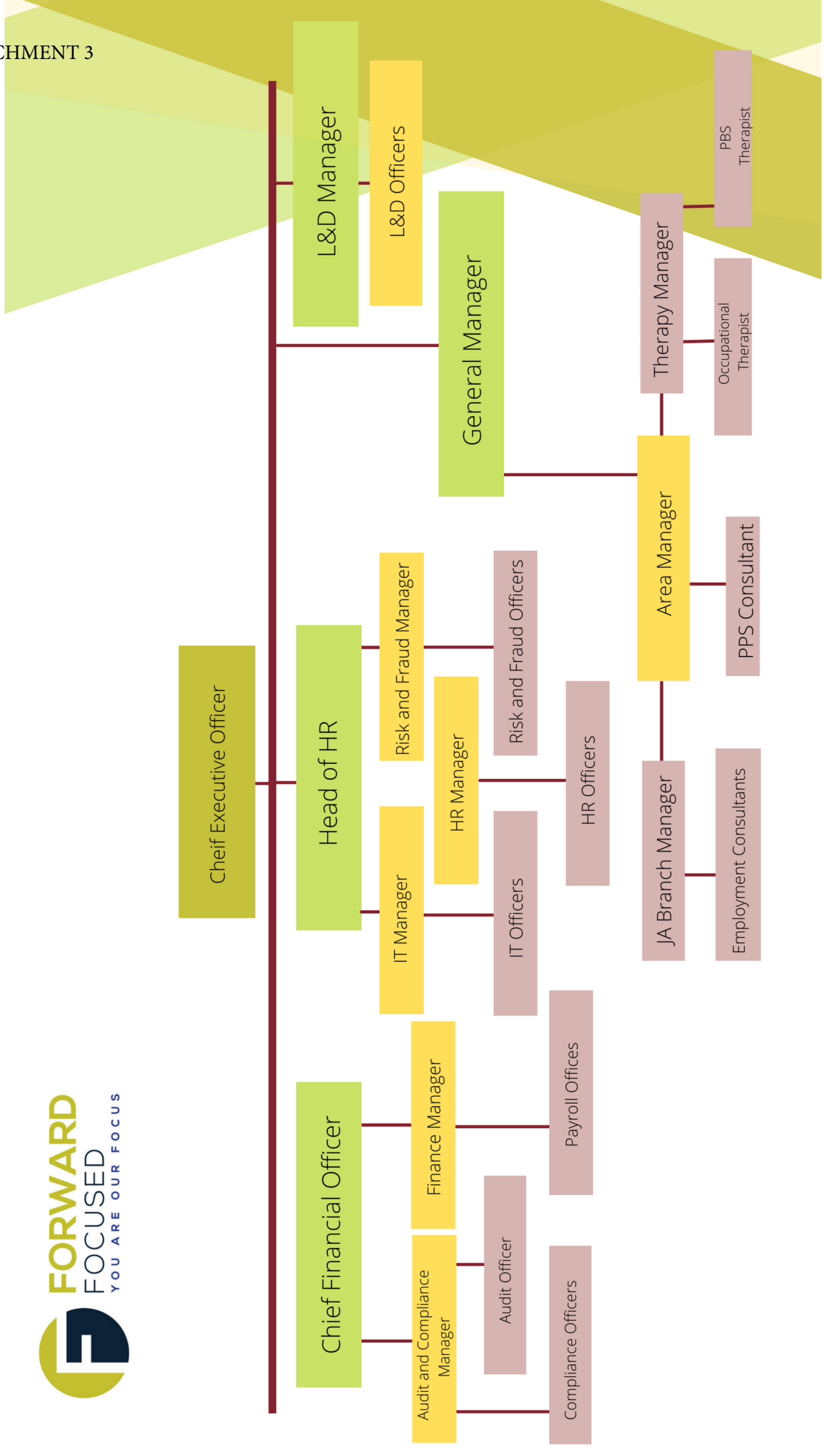
Director, Forward Focused Group

43 Williams Street, Armadale, 6112, WA

0409751638 simon@ffg.net.au

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ATTACHMENT 3



ATTACHMENT 4

- Fraud and Corruption Policy

Fraud and Corruption Policy

Read our Fraud and Corruption Policy

FFG Australia is committed to maintaining a robust culture of integrity and ethical behaviour. Our Fraud and Corruption Policy details this commitment.

Version	1.0
Policy owner	Company Secretary
Approved by	FFG Australia Board of Directors
Last updated	October 2022
Review date	October 2023

1. Introduction

1.1 Commitment

The FFG Australia Group consists of FFG Australia Ltd and all other related entities of FFG Australia Ltd ('**FFG Australia**').

FFG Australia is committed to establishing and maintaining an organisational culture that will ensure effective Fraud and Corruption prevention is an integral part of its day-to-day operations in all countries where FFG Australia operates.

Definitions of 'Fraud' and 'Corruption' are set out in sections 2 and 3 below.

1.2 Scope

This Policy applies to anyone who is employed by FFG Australia or works for or on behalf of FFG Australia, including employees (whether permanent, fixed-term or temporary), contractors, consultants, secondees and directors and officers wherever located (collectively referred to as 'FFG Australia People' in this Policy).

1.3 Statement of Attitude to Fraud and Corruption

FFG Australia is committed to maintaining a robust culture of integrity and ethical behaviour. FFG Australia will not tolerate Fraud or Corruption within any part of the organisation (whether in Australia or elsewhere). Any Fraud or corruption that is detected may be reported to the relevant law enforcement agency in the specific country, state or province in which the alleged offence has occurred.

Fraud and Corruption is regulated by a number of laws in Australia, including the Australian Commonwealth and State criminal codes, Corporations legislation, competition and consumer legislation and common law. In addition, the presence of FFG Australia internationally means that laws regulating Fraud and Corruption in other countries, such as the Bribery Act 2010 (UK), will apply to FFG Australia and FFG Australia People.

Conduct involving Fraud and Corruption may attract significant penalties to FFG Australia, its directors and officers, as well as other FFG Australia People. Such conduct will invariably be a breach of FFG Australia's Code of conduct for which there are disciplinary sanctions and may also result in criminal prosecution. For example, bribing or attempting to bribe a public official, is a serious criminal offence that can result in imprisonment.

In addition, actual or alleged Fraud and Corruption may have serious reputational damage to FFG Australia and FFG Australia People.

1.4 Relationship with other FFG Australia Policies

This policy should be read in conjunction with the FFG Australia Code of Conduct (which covers gifts and gratuities), the Whistleblower Policy and the Modern Slavery Statement.

1.5 Roles and Accountabilities

Pursuant to this Policy, various FFG Australia People have roles and accountabilities. FFG Australia is committed to assisting the FFG Australia People in these roles to implement and carry out the requirements of this Policy.

1.6 Senior Leadership Responsibilities

Without limiting anything in this Policy, directors, the executive management team and senior management of FFG Australia are expected to demonstrate due and proper compliance with this Policy and promote due and proper compliance with this Policy by FFG Australia People.

2. Fraud

2.1 Definition of Fraud

Fraud refers to a dishonest activity that leads to obtaining an unfair or unlawful benefit or financial advantage to any person or entity.

Examples of fraud include but are not limited to:

- theft of moneys or other property by FFG Australia People;
- false invoicing (i.e. creating a fictitious invoice claiming payment for goods or services not delivered or exaggerating the value of goods delivered or services provided);
- false accounting / accounts receivable fraud (misappropriation or misdirection of remittances received by an entity from a debtor);
- credit card fraud involving the unauthorised use of a credit card or credit card number issued to another person;

- deliberate falsification, concealment, destruction or use of falsified documentation used or intended for use for a normal business purpose;
- improper use of information or position for personal benefit; or
- misuse of position in order to gain some form of financial advantage.

For the purpose of this Policy, the theft of property belonging to an entity by a person or persons internal to the entity but where deception is not used is also considered ‘Fraud’.

2.2 Key principles - Fraud

FFG Australia People are expected to conduct themselves with integrity and comply with all FFG Australia policies and procedures addressing the handling of goods, financial accounts, payments and information with respect to record keeping, including the FFG Australia Code of Conduct.

3. Corruption

3.1 Definition of Corruption

Corruption refers to a dishonest activity in which FFG Australia People or external parties abuse their position of trust in order to achieve some personal or business gain or advantage for themselves or another person or entity (including FFG Australia).

Examples of corruption include but are not limited to:

- offer, payment, solicitation or receipt of secret commissions / bribes, which may be paid in money or in some other form of value and which may relate to a specific decision or action by the receiver or generally;
- release of confidential information for other than a proper business purpose in exchange for some form of non-financial benefit or advantage accruing to the FFG Australia People releasing the information;
- collusive tendering (the act of multiple tenderers for a particular contract colluding in preparation of their bids);

- payment or solicitation of donations for an improper political purpose;
- serious conflict of interest involving a senior manager, member of the executive management team, or a director of FFG Australia acting in their own self-interest rather than the interests of FFG Australia;
- serious nepotism and cronyism where the appointee is inadequately qualified to perform the role to which they have been appointed;
- manipulation of the procurement process by selectively providing information to some bidders and not to others;
- receipt or the making of gifts or entertainment intended to achieve a specific or generic commercial outcome;
- causing, contributing to, or being directly linked to modern slavery (defined broadly as all forms of human trafficking, forced labour and slavery-like practices), which can be closely linked to corruption or fraud;
- bribing government officials (locally or in foreign jurisdictions) for any reason, including in order to secure a contract for the supply of goods or services; or
- the provision of or receipt of private sector to private sector secret commissions or kick-backs to secure contracts.

3.2 Key principles - Corruption

- FFG Australia People should never give or accept bribes (regardless of its value) to persuade someone to act in FFG Australia's favour, their personal favour or for the benefit of a third party, including family or friends.
- FFG Australia People should never make facilitation payments (i.e. unofficial minor payments to secure or speed up a routine government action) regardless of whether such payments are considered routine or customary.
- The payment, or attempted payment, of a bribe to any government official, including a foreign public official, will not be tolerated under any circumstance.
- FFG Australia People may engage with governments, regulators, and industry associations across the world in the ordinary course of FFG Australia's activities, however they should not offer or accept gifts, or entertainment to or from any government employee or public official.

- If FFG Australia People are offered a bribe or witnesses any other corrupt practice, it is expected that they decline the offer and report the matter in accordance with the reporting protocol set out in this Policy.

4. FFG Australia People responsibility

All FFG Australia People are responsible for promoting a Corruption and Fraud free working environment.

4.1 Compliance with this Policy

Compliance with this Policy is mandatory including when dealing with:

- commercial third parties such as suppliers, vendors, agents, consultants, and contractors; and
- government public officials at the local, state and federal level (including foreign public officials).

The term "public official" is broadly defined under anti-bribery and corruption laws, and can include individuals who perform work for governments or government owned enterprises.

Any breach of this Policy by FFG Australia People may have serious consequences for all parties involved including: disciplinary action; termination of employment; and/or criminal prosecution.

4.2 Education and Training

It is the aim of FFG Australia that all FFG Australia People are aware of and understand this Policy and the importance of preventing Fraud and Corruption within FFG Australia.

All FFG Australia People must participate in Fraud and Corruption training as part of FFG Australia’s annual compliance training program and their ongoing employment with FFG Australia. Training and delivery materials will be reviewed annually by FFG Australia with the training focused on compliance with relevant laws and relevance to the FFG Australia business.

4.3 Dealing with Third Parties

Where FFG Australia engages with third parties, the level of due diligence undertaken should be appropriate to the Fraud and Corruption risks connected to the particular relationship or situation. This may include measures such as conducting direct and indirect enquiries, background research, requesting details from a third party on the background, researching the expertise and experience of relevant individuals, and seeking to verify the information received through independent research and by contacting referees.

4.4 Obligation to Report

All FFG Australia People have an obligation to report any alleged incident(s) of Corruption or Fraud in the manner set out in this Policy.

5. Fraud and Corruption Control and Risk Management

5.1 Fraud and Corruption Control

FFG Australia's Risk and Compliance Manager oversees FFG Australia's Fraud and Corruption Risk Management.

5.2 External Assistance regarding Fraud and Corruption

FFG Australia is committed to providing sufficient resources to mitigate the risk of Fraud and Corruption occurring. FFG Australia may obtain external assistance and legal advice in respect of FFG Australia's Fraud and Corruption risk management practices, where required (including advising on issues relevant to the ongoing risk management of Fraud and Corruption or with investigations of specific incidents of Fraud or Corruption).

5.3 Program for Fraud and Corruption Risk Management

The Risk and Compliance Manager under the supervision of the Chief Financial Officer, is responsible for developing and maintaining FFG Australia's Fraud and Corruption Risk Management Plan and Program.

An assessment of Fraud and Corruption risks will be conducted, at least, on a biennial basis. As part of this assessment, Fraud and Corruption risks will be rated according to the level of risk. Actions to be taken from this assessment will be reflected in the Fraud and Corruption Risk Management Plan and Program.

5.4 Implementation of Fraud and Corruption Risk Management Plan and Program

The organisation is responsible for the implementation of this Policy and the Fraud and Corruption Risk Management Plan and Program.

5.5 Ongoing review of Fraud and Corruption Risk Management Plan and Program

The Fraud and Corruption Risk Management Plan will be reviewed on an ongoing basis and should be formally reviewed at least once every 12 months, as part of the annual assessment of FFG Australia's operational and strategic risks.

Regular internal audits of aspects of the Fraud and Corruption Risk Management Plan and Program will be undertaken and overseen by the Chief Financial Officer and the Company Secretary, to ensure ongoing compliance and effectiveness of the Fraud and Corruption Risk Management Plan and Program.

6. Procedures for reporting fraud and corruption

6.1 Reporting

All FFG Australia People have an obligation to report incidents of Fraud and Corruption. All reports of Fraud or Corruption should be made to the Executive General Manager, People and Culture. This can be done in person, in writing or by email. All reports will be kept confidential.

FFG Australia People can also use the reporting mechanisms contained in the FFG Australia Whistleblower Policy.

6.2 Protection of FFG Australia People Reporting Suspected Fraud or Corruption

As set out in 1.4, this Policy is to be read in conjunction with the FFG Australia Whistleblower Policy. The Whistleblower Policy outlines certain legal protections that may apply to FFG Australia People.

6.3 Reports to regulatory agencies

Following appropriate internal investigations into allegations of Fraud or Corruption (as described in this Policy), confirmed incidents of Fraud or Corruption may be reported to the relevant law enforcement agency in any country, province or state.

6.4 Recovery of the Proceeds

FFG Australia may take steps to recover the amount of the loss as a result of Fraud or Corruption from any perpetrator(s) through civil recovery proceedings.

7. Procedures for fraud investigation

7.1 Internal Investigations

The FFG Australia Whistleblower Policy sets out principles and processes by which incidents reported under that Policy will be investigated and acted on, including incidents of Fraud or Corruption. Where incidents of Fraud or Corruption are reported pursuant to this policy but do not fall within the scope of the FFG Australia Whistleblower Policy, similar principles and processes will be applied to the extent appropriate in the circumstances.

Reports of Fraud or Corruption involving suppliers will also be reviewed for potential links to modern slavery.

7.2 External Investigative Resources

FFG Australia will engage external resources as considered necessary to be able to conduct the investigation.

8. Review of policy

This Policy will be reviewed on, at least, an annual basis, and in conjunction with the regular Fraud and Corruption Risk Management Plan described in section 5 of this Policy. This version of the Policy was approved by the FFG Australia Board of Directors on 13 October 2022.

ATTACHMENT 5

FORWARD FOCUSED
YOU ARE OUR FOCUS

Dear Workforce Australia,

Thank you for your request for our policies and procedures. We appreciate your diligence in ensuring that our organization aligns with regulatory standards and best practices.

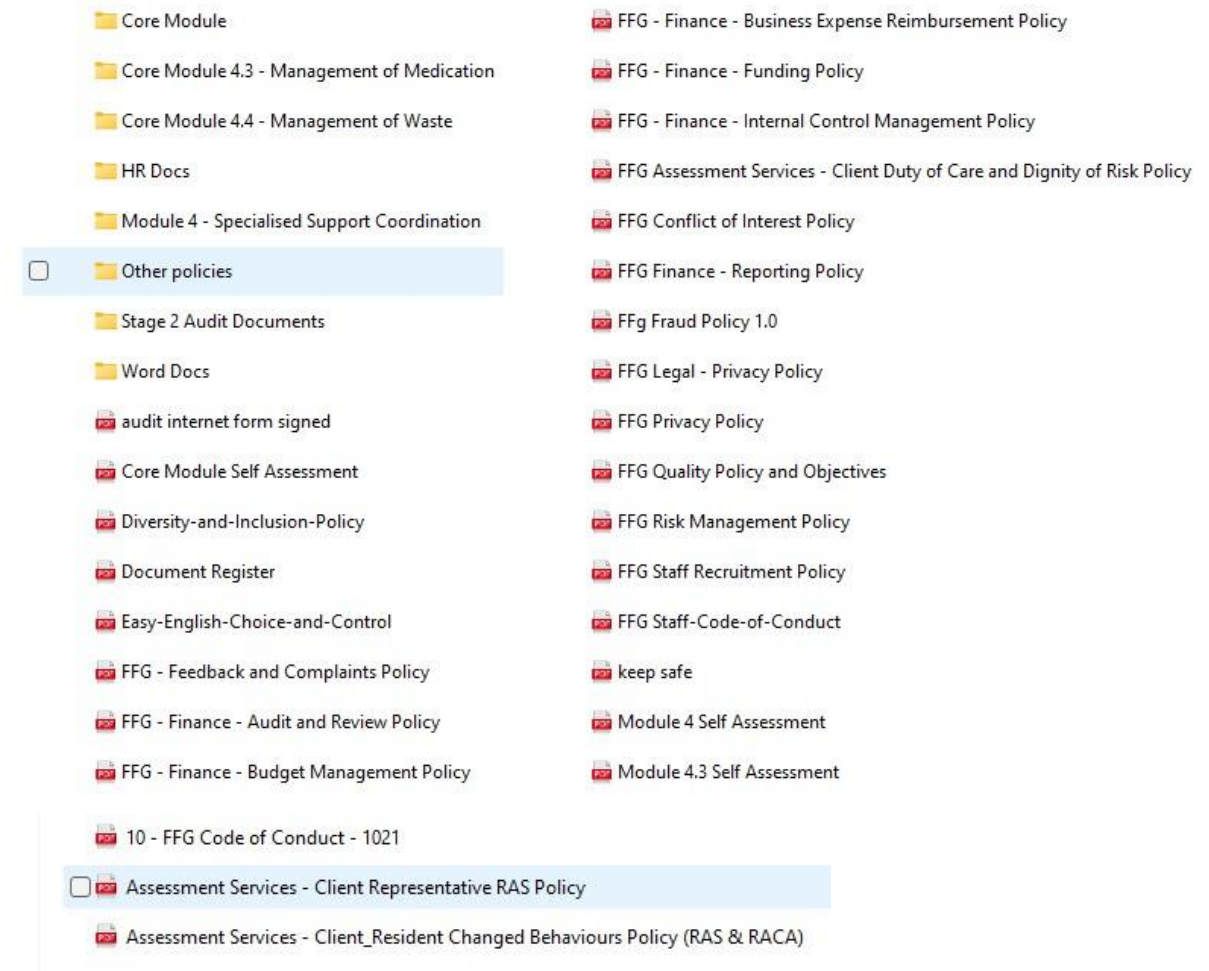
In response to your inquiry, I have attached our new Fraud Policy for your review. This policy specifically addresses measures put in place to prevent potential undesirable issues and safeguard our operations. We believe it is of utmost importance to prioritize transparency and integrity in all aspects of our work, including the prevention and detection of fraudulent activities.

However, due to the substantial volume of our policies and procedures, it would be impractical to transmit them all via email. These documents encompass a comprehensive range of guidelines, including but not limited to HR, privacy, safety, and compliance. To ensure accuracy and to provide you with the most up-to-date information, we recommend scheduling a secure data exchange or arranging an in-person meeting where we can present the complete set of policies and procedures for your review.

We appreciate your understanding and are committed to working closely with Workforce Australia to fulfill all necessary compliance requirements. Please let us know your preferred method for sharing the remaining policies and procedures, and we will be happy to accommodate your request.

Thank you for your attention, and we look forward to the opportunity to further discuss our policies and procedures with you.

Policies and Procedures List :-



Thank you for your attention, and we look forward to the continued collaboration with Workforce Australia.

Yours sincerely,



Simon R

Director, Forward Focused Group

43 Williams Street, Armadale, 6112, WA

0409751638 simon@ffg.net.au

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